

Rathi Steel And Power Ltd. v. M.D. PVVNL

High Court of Judicature at Allahabad · Division Bench · 17 November 2018 · Writ - C No. 48729 of 2008 · **Writ dismissed following Dev Prayag Paper Mill (21.3.2017).**

HEADNOTE

Challenge to an additional-security demand and to clause 4.20(1) of the U.P. Electricity Supply Code, 2005 as ultra vires Section 47(5) of the Electricity Act, 2003, dismissed in terms of this Court's 21.3.2017 judgment in Dev Prayag Paper Mill, which had already dismissed identical petitions.

FACTUAL SUMMARY

Rathi Steel and Power Ltd. challenged a demand for additional security for electricity supply, with a warning that non-payment within the stipulated period would invite action in accordance with law. They also attacked clause (1) of paragraph 4.20 of the U.P. Electricity Supply Code, 2005, insofar as the consumer's option depends on the licensee providing a choice, as ultra vires Section 47(5) of the Electricity Act, 2003. Counsel stated that identical petitions had already been dismissed and that the lead judgment was pending in the Supreme Court.

HOLDING-UNITS

INTERPLAY · UP-2005::4.20

additional security; consumer option under clause 4.20(1)

HOLDING

The writ petition, including the challenge to clause 4.20(1) of the U.P. Electricity Supply Code, 2005 as ultra vires Section 47(5) of the Electricity Act, 2003, is dismissed in terms of the judgment dated 21.3.2017 in M/s Dev Prayag Paper Mill (Pvt.) v. State of U.P. (Writ-C No. 30898 of 2016), which had already dismissed identical additional-security matters. ¶ 1

TABLE OF AUTHORITIES

AUTHORITY	PROPOSITION	HOW TREATED	CITED BY	TREATMENT
M/s Dev Prayag Paper Mill (Pvt.) v. State of U.P. Writ-C No. 30898 of 2016 (21.3.2017)			1	Referred